

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	23CV416550	William Brooks, et.al. vs. Cheryl Boomgarden	See below.
9:00 2	23CV417433	Bank of America vs. Onorio Pacheco-feria	Plaintiff moves this court to set aside dismissal pursuant to settlement between parties. Defendant and plaintiff entered into a settlement agreement to pay off Defendant's debt to Plaintiff. Case was dismissed pursuant to CCP 664.6. Defendant has not made a payment since September 20, 2025. Plaintiff's motion is GRANTED. Defendant is ordered to make payment to Plaintiff of \$5,364.14.
9:00 3	24CV449389	Samita Bhandary vs. Agradoot Ghatak, et.al.	Plaintiff moves this court for reconsideration of the Court's order on December 8, 2025 denying Plaintiff's motion to reconsider the Court's order striking Plaintiff's complaint without leave to amend on October 9, 2025. The burden under CCP section 1008 for reconsideration is "comparable to that of a party seeking a new trial on the ground of newly discovered evidence..." (New York Times Co. v. Superior Court (2005) 135 Cal.App.4 th 206, 212-213.) Plaintiff's motion is DENIED.
9:00 4-5	24CV453156	Leyva, et.al. vs General Motors, LLC	Defendant moves this court for demurrer on the fifth cause of action of the second amended complaint. Plaintiff filed no objection to this motion. Plaintiff's allegation is fraudulent concealment. Plaintiff is barred from filing this allegation based on the 3 year statute of limitations. Defendant's motion is GRANTED. Defendant moves this court to strike punitive damages claim. Plaintiff has failed to contest motion. Since this court is granting Defendant's motion for demurrer, there is no fraudulent concealment allegation that would warrant a punitive damages claim. Defendant's motion is GRANTED.